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NOTICE ONLY PACK - PREVIEW

Jurisdiction: England

Notice Type: Section 21 Notice (No-Fault) - England

DOCUMENTS INCLUDED:

1. Section 21 Notice (Form 6A) Page 2
2. Service Instructions Page 5
3. Service and Validity Checklist Page 7

WHAT YOU GET:

* Court-ready legal documents
* Professional service instructions
* Pre-service compliance checklist
* Next steps guidance
* Lifetime dashboard access
* Free regeneration anytime

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IMPORTANT: This is a PREVIEW ONLY

Complete purchase (£29.99) to download full unredacted documents.

All documents are editable and can be regenerated anytime.

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Notice Requiring Possession of a Property in England Let on an Assured Shorthold Tenancy

Form No. 6A

Housing Act 1988 section 21(1) and (4) (as amended)

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INFORMATION FOR THE TENANT

This notice tells you that your landlord requires possession of your home. **You should read it carefully and seek advice about your circumstances as quickly as possible.**

You are entitled to at least two months' notice before being required to give up possession of your home. In some circumstances a longer notice period may be required.

If you do not leave your home by the date given in section 2, your landlord may apply to the court for an order under Section 21(1) or (4) of the Housing Act 1988 requiring you to give up possession.

If you are worried about this notice, and what you should do about it, take it immediately to **Citizens Advice, a housing advice centre, a law centre or a solicitor.**

If you are a debtor and you are in a 'breathing space', you should inform your debt advisor.

If you believe you are at risk of homelessness as a result of receiving this notice, you should contact your local authority for support.

Free independent advice is also available from Shelterline on **0808 800 4444** or via the Shelter website at:

https://www.shelter.org.uk/

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Further information about this notice and the possession process can be found at:

https://www.gov.uk/government/publications/understanding-the-possession-action-process-guidance-for-landlords-and-tenants

1. To:

Bob Tenant

2. You are required to leave the below address after:

1 April 2025

If you do not leave, your landlord may apply to the court for an order under Section 21(1) or (4) of the Housing Act 1988 requiring you to give up possession of:

321 Renter Lane
Manchester
M2 3PQ

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3. If your landlord does not apply to the court within a given timeframe this notice will lapse. If you are entitled to more than 2 months' notice your landlord can rely on this notice to apply to the court during the period of 4 months commencing from the date specified in section 2 above. In all other cases, your landlord can rely on this notice to apply to the court during the period of 6 months commencing from the date this notice is given to you.

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4. Name and address of landlord or landlord's agent:

(To be completed in full by the landlord, or, in the case of joint landlords, at least one of the joint landlords, or by someone authorised to give notice on the landlord's behalf.)

Signed: _____

Name:

Sarah Landlord

Address:

789 Owner Avenue
Manchester
M1 1AD

Telephone number:

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Signed: _____

Name: _____

Address: _____

Telephone number: _____

Capacity (please tick):

landlord

joint landlord(s)

landlord's agent

Date:

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15 January 2025

Service Instructions

This notice must be properly served on the tenant(s) named in section 1. You may serve this notice by:

- **Hand delivery:** Delivering the notice to the tenant personally
- **Leaving at the property:** Leaving the notice at the property in a place where it is likely to come to the tenant's attention
- **First class post:** Posting it by first class post to the tenant's last known address (allow for postal delivery time)
- **Email or other electronic means:** Only if the tenancy agreement specifically permits service by email and you have prior written agreement from the tenant

Record keeping: Keep proof of service (e.g., photograph of hand delivery, postal receipt, copy of email). If proceedings are started, you may need to provide evidence of when and how the notice was served.

Important: The date in section 4 should be the date you serve the notice, not a future date.

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Service and Validity Checklist

Before serving this notice, ensure you have satisfied all of the following requirements:

- The tenancy is an assured shorthold tenancy under the Housing Act 1988
- All details in sections 1-4 are complete and accurate
- The notice period given (section 2) is at least two months (or longer if required by your circumstances)
- At least four months have passed since the start of the tenancy (unless a valid Section 21 notice was served before the tenancy began)
- Any fixed term has ended, or will end before the date given in section 2
- Any deposit taken has been protected in a government-approved scheme within 30 days of receipt, and prescribed information has been provided to the tenant
- Required documents have been provided: Gas Safety Certificate (if applicable), Energy Performance Certificate, and How to Rent guide
- Any required property license has been obtained
- No tenant improvement notice, emergency remedial action notice, or similar enforcement action is in effect
- No prohibited fees have been charged

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- The notice is signed and dated

After serving this notice: You may apply to court for a possession order once the date in section 2 has passed, but you must do so within the time limits specified in section 3 or the notice will lapse.

Seeking advice: If you are unsure about any aspect of this notice or the possession process, seek independent legal advice.

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Service Instructions for Section 21 Notice

Property: 321 Renter Lane
Manchester
M2 3PQ

Tenant: Bob Tenant

Notice Type: Section 21

Service Date: 15 January 2025

Expiry Date: 29 January 2025

⚠️ **CRITICAL:** You must serve this notice correctly or it will be invalid. Incorrect service is the most common reason for court rejection. Section 21 notices have strict compliance requirements.

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Before You Serve - Compliance Requirements

Section 21 notices can be invalidated if you haven't met all compliance requirements. Check that you have:

- ✓ Protected the deposit in an approved scheme (if deposit taken)
- ✓ Given prescribed information to tenant within 30 days
- ✓ Provided How to Rent guide
- ✓ Provided valid Gas Safety Certificate (if applicable)
- ✓ Provided Energy Performance Certificate (EPC)
- ✓ Complied with licensing requirements (if applicable)

⚠️ **Deposit Protection:** If you haven't protected the deposit properly, you cannot serve a valid Section 21 notice until you comply with deposit protection requirements AND pay compensation to the tenant (1-3 times the deposit amount).

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How to Serve This Notice

Under the Housing Act 1988, you have several options for serving the notice. Choose the method that gives you the best evidence of service.

✅ RECOMMENDED METHOD: Hand Delivery

- **Hand-deliver through the letterbox** at the property
- **Date:** Deliver on or after 15 January 2025
- **Witness:** Take a witness with you who can confirm delivery
- **Evidence:** Take a photo of the letterbox with the notice visible (or being pushed through)
- **Time:** Note the exact time of delivery
- **Witness Statement:** Get your witness to sign a statement confirming what they saw

✓ **Why this is best:** Clear evidence of when and where the notice was delivered. If the tenant denies receiving it, you have photographic proof and witness testimony.

Alternative Method 1: First Class Post

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- **Send via Royal Mail First Class** post
- **Keep proof of postage receipt** (Royal Mail will provide this when you post)
- **Deemed served:** Notice is deemed served 2 days after posting (excluding Sundays and bank holidays)
- **Safety margin:** Add 2-3 extra days to your notice period if using this method

⚠️ **Note:** First class post is legally acceptable, but provides less certainty than hand delivery. The tenant can claim they never received it, and you'll only have proof of posting, not receipt.

Alternative Method 2: Recorded Delivery

- **Send via Royal Mail Recorded Delivery**
- **Tracking:** You'll receive a tracking number
- **Proof of delivery:** Royal Mail provides proof when it's delivered
- **Signature required:** Someone must sign for it

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⚠️ **Risk:** If the tenant refuses to sign or doesn't answer the door, the notice may not be deemed served. Use this method only if you're confident the tenant will accept it.

❌ NOT RECOMMENDED: Email or Text

- **Do NOT email or text the notice** unless your tenancy agreement specifically allows electronic service
- Most tenancy agreements do NOT allow electronic service
- If you email/text and the tenancy doesn't allow it, your notice is invalid
- You'll waste time and money and have to start again

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Evidence You Must Keep

If you go to court, you must **prove you served the notice correctly**. The court will ask for evidence. Keep the following:

Service Evidence Checklist:

- ✓ Photo of notice being delivered (letterbox shot with notice visible)
- ✓ Witness statement (name, address, what they saw, signature)
- ✓ Proof of postage (if posted)
- ✓ Recorded delivery receipt (if used)
- ✓ Copy of the notice you served (this exact document)
- ✓ Date and time of service (written down immediately)
- ✓ Any correspondence with tenant acknowledging receipt

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Witness Statement Template:

"I, [Witness Name], of [Witness Address], confirm that on [Date] at [Time], I witnessed [Your Name] hand-deliver a notice through the letterbox at [Property Address]. The notice was fully inserted into the letterbox and dropped inside the property. [Signature] [Date]"

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What Happens After Service?

Waiting Period

After serving the notice, you must wait until the expiry date: **29 January 2025**

- The tenant does NOT have to leave immediately
- They have until the expiry date to leave voluntarily
- During this period, they should continue paying rent
- You cannot change the locks or force them out (this is illegal)

If They Leave Voluntarily

If the tenant leaves before or on the expiry date:

- ✓ Great! You've avoided court proceedings
- ✓ Do a final inspection with them present (if possible)

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- ✓ Complete the check-out inventory
- ✓ Return their deposit within 10 days (if protected)
- ✓ Settle any disputes about deductions

If They Don't Leave

If the tenant is still in the property after **29 January 2025**:

- **DO NOT** change the locks (illegal eviction - you could face criminal charges)
- **DO NOT** remove their belongings (illegal)
- **DO NOT** harass them or cut off utilities (illegal)
- **DO** apply to court for a possession order

⚠️ **Court Application:** You can use either Form N5 (standard possession claim) or Form N5B (accelerated procedure). N5B is faster if the tenant doesn't dispute, but requires complete compliance with all Section 21 requirements. If you purchased the Complete Pack, these forms are included. Otherwise, you'll need to upgrade or obtain them separately.

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Common Mistakes to Avoid

- ❌ Not protecting the deposit before serving the notice
- ❌ Serving before providing How to Rent guide
- ❌ Getting the expiry date wrong (must be at least 2 months and aligned with rent period)
- ❌ Not keeping evidence of service
- ❌ Serving by email when the tenancy doesn't allow it
- ❌ Changing locks before getting a court order (illegal eviction)
- ❌ Missing compliance requirements (gas cert, EPC, How to Rent, licensing)
- ❌ Serving within first 4 months of tenancy (only applies to new ASTs from October 2015)

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Legal Basis

Service Requirements: Housing Act 1988, Section 21

Proof of Service: Civil Procedure Rules, Part 6

Illegal Eviction: Protection from Eviction Act 1977

Deposit Protection: Housing Act 2004, Sections 213-215

Important: This is guidance only and does not constitute legal advice. If you're unsure about any step, consult a solicitor or legal advisor.

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Section 21 Notice - Service and Validity Checklist

Purpose: Use this checklist to verify your Section 21 notice was served correctly and meets all validity requirements. Keep this checklist with your evidence file.

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Notice Details

Landlord: Sarah Landlord

Landlord Address: 789 Owner Avenue
Manchester
M1 1AD

Tenant: Bob Tenant

Property Address: 321 Renter Lane
Manchester
M2 3PQ

Tenancy Start Date: 1 June 2020

Notice Service Date: 15 January 2025

Possession Date (two months from service): 29 January 2025

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Service Evidence Checklist

Confirm you have collected and retained the following evidence of service:

- Original signed Section 21 notice (Form 6A)
- Copy of the notice served to tenant
- Date and time of service recorded
- Method of service documented (hand delivery / first class post / recorded delivery)
- Proof of service:
    - If hand delivered: Photo of letterbox with notice visible, witness statement
    - If posted: Proof of postage receipt from Royal Mail
    - If recorded delivery: Tracking number and delivery confirmation
- Witness details recorded (name, address, signature) if applicable
- Any correspondence from tenant acknowledging receipt

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Keep All Evidence: You must prove service in court. Section 21 accelerated procedure requires clear evidence - without it, your claim will be rejected.

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Validity Requirements (Housing Act 1988, Section 21)

Verify your notice meets these critical validity requirements:

- Notice uses correct form (Form 6A for AST tenancies)
- All mandatory fields completed (landlord name/address, tenant name, property address)
- Notice gives at least two months notice
- Possession date is end of a tenancy period or later
- Notice not served in first 4 months of tenancy (or first 6 months if deposit recently protected)
- Periodic tenancy: Possession date aligns with end of rent period
- Notice signed and dated by landlord or landlord's agent

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⚠️ **CRITICAL PRE-SERVICE COMPLIANCE:** Section 21 is invalid if these were not met BEFORE serving notice:

- Deposit protected in approved scheme (DPS, TDS, MyDeposits) within 30 days
- Prescribed information given to tenant within 30 days of receiving deposit
- Gas safety certificate provided (if property has gas appliances)
- Energy Performance Certificate (EPC) provided with rating E or above
- "How to Rent" guide provided (latest version from gov.uk)
- Property licensed if licensing required (selective/HMO licensing)

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After Service

Post-service actions:

- Wait until possession date has passed: **29 January 2025**
- Do not change locks or remove tenant belongings (illegal eviction)
- Do not harass tenant or cut off utilities
- If tenant remains after possession date, apply to court using Form N5B (accelerated) or Form N5 (standard)
- Keep proof of service and all compliance evidence readily accessible for court

Legal Basis: Housing Act 1988, Section 21 (as amended by Deregulation Act 2015)

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